

In 1996, the Internet and web as we know it today did not yet really exist. There was no Facebook, Twitter, Google, YouTube, or Wikipedia. Only about 20 million US adults had access to the Internet, and they spent fewer than 30 minutes a month online. AOL was the world’s largest ISP, along with Prodigy and Compuserve. But there were a few features that would be recognizable today, including bulletin boards (forums) and blogs (although they were not yet called that). The US Congress at that time was very concerned about online pornography and, in that year, passed the Communications Decency Act, a law designed primarily to regulate obscenity and indecency on the Internet. Most of the law was quickly found to be unconstitutional by the US Supreme Court, but one provision survived: Section 230. Congress had no inkling at the time that Section 230 would later come to be viewed as making the Internet of today possible.

Section 230 has two major provisions: Section 230(c)(1) and Section 230(c)(2). Section 230(c)(1) provides that online companies that enable the posting of user content should not be treated as a publisher or speaker of that content and, therefore, should not be held legally responsible (liable) for that content. This section of the law likens such services to the telephone system or bookstores, which are not responsible for unlawful content that they may play a part in distributing. Congress believed that such a provision would give needed support for what was, at the time, a nascent industry. Without this provision, early Internet companies might have had to spend too much time and resources moderating content to avoid being subjected to potential liability.

Section 230(c)(2) provides that online companies shall not be held liable if they choose, in good faith, to remove user content they deem offensive. This provision resulted from a lawsuit involving user content on a Prodigy bulletin board that a company alleged was defamatory. A New York state court found Prodigy liable because Prodigy exercised editorial control over bulletin board content, at times removing content it believed objectionable. The court case presented Internet firms with a difficult choice—either moderate content (but be subject to the risk of potential legal liability) or don’t moderate any content (but run the risk of objectionable content that might harm their business interests). Section 230(c)(2) aimed to remove that concern.

In the years that followed the passage of Section 230, courts interpreted it as creating broad immunity with respect to any claims based on user content, even if the platform knew the content was unlawful. Doing so enabled business models based on user content, such as social media, to flourish. The law has been widely characterized as laying the foundation for the Internet we know today.

However, Section 230 has become a lightning rod in recent years, particularly in relation to social media platforms such as Facebook and Twitter that host a flood of divisive content, including what many believe to be harmful disinformation.

In the current, heightened political climate, Section 230 has been attacked from both sides. Some have called for its repeal or reform because they believe that Big Tech companies are biased against conservative viewpoints and that, enabled by Section 230(c)(2), they act to censor certain voices. These critics want to prevent Big Tech platforms from being able to unilaterally decide what content they will remove, label, or restrict. Others also want reform, but for a different reason. They contend that Section 230(c)(1), by granting Internet platforms legal immunity with respect to user content, reduces their incentive to proactively remove content that causes social harm, especially when that content can be economically valuable to them. Seemingly no one is happy with Section 230 anymore, except the technology companies it was originally designed to protect. Most of these companies want Section 230 to remain as it has always been, with some companies viewing any kind of reform effort as an existential threat to the Internet.

Some Section 230 critics focus on the amplification caused by algorithms and suggest removing liability protection when social media algorithms promote harmful content. However, it is unclear whether it would be possible to design an algorithm that amplifies only “good” content, nor is it clear as to how “good” versus “bad” content should be determined. Others have suggested that a platform’s safe harbor protections be tied to the use of reasonable content moderation policies, although this raises free speech issues. Some lawmakers have proposed eliminating Section 230 protections for “market-dominant” Internet platforms or have said that eligibility for Section 230 safe harbors should be based on political neutrality. Still others warn that any Section 230 reform itself may have unintended and harmful side effects, pointing to